1951

F

FAR EASTERN DEPARTMENT

JAPAN

127

F 1022/174

FROM Mr Clutton
Tokyo

No. 324
Dated 22.3.51
Received in Registry 26.3.51.

Comments on the Japanese angle of the problem of Chinese & Russian non participation & the question of Japanese participation in Japanese Peace Treaty.

REFERENCES

F 1022/121

(Print)

(How disposed of)

8) N Ross (CRO) April 5

(Action completed) 3/5

(Index) Kemp 22/6/51

MINUTES

The suggestion in paragraph 4 is interesting. It is possible that the United States Government may be prepared to agree to an invitation to comment on their provisional draft being sent to Peking. If they agree, Peking will presumably reject the draft; but if not, it should not be difficult to find a point of substance on which to break with them. In either case our hands will be clean.

If however the U.S. Government refuses to allow a copy of their draft to be sent to Peking and we have then to propose some compromise on the lines of the letter referred to in this telegram, it might, I think, be worth while suggesting to the Americans that if they insist on keeping the Chinese Nationalists in touch with the negotiations we may have to reserve our right to do the same with the Communists. In practice however, I think that if it is agreed to exclude China, it might be best to attempt to make this exclusion complete and to explain the reasons for it to the Japanese.

Paragraph 5. I think that this is a useful suggestion provided that the Japanese are not shown the present United States draft. It might, I think, be better to show the Japanese a draft once we have reached substantial agreement upon it with the U.S. Government. At the moment there are too many differences between ours and the American draft to take this risk.

Copy to CRO (N. Ross).

(C.P. Scott)

2nd April, 1951.

N. CH Johnston.

Agreed - CH.S.

3.iv.

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FROM TOKYO TO FOREIGN OFFICE

Mr. Clutten

No. 324 D:10.40 a.m. March 23rd, 1951.

22nd March, 1951. R:11.23 a.m. March 23rd, 1951.

SECRET

F 1022/174

Addressed to Foreign Office telegram No. 324 of 22nd March.

Repeated for information saving to : Washington.

Mr. Johnston's letter No. FJ 1022/121 of 12th March to Tomlinson : Japanese Peace Treaty Procedure.

There are only two points on which I can usefully comment viz the Japanese angle of the problem of Chinese and Russian non participation and the question of Japanese participation.

2. If neither the Chinese Central People's Government nor the Soviet Government are signatories to the Japanese Peace Treaty, the important thing from the point of view of Japan's future relations with the Allies is that the blame for this shall lie at the door of China and Russia and not at that of the Allies and that neither Russia nor China shall be in a position to exploit Japanese grievances in the matter real or imagined. (It would be foolish to ignore completely the fact that the absence of Russian or Chinese signatures to the Peace Treaty will involve Japan in certain difficulties, economic and others).

3. As far as the Soviet Government is concerned, I think in general my point is covered by the procedure set out in the letter under reference. I would, however, suggest that if it is possible the Soviet Government should be consulted on the draft Treaty at the same time as the principal participants. Otherwise, may we not give the Russians some semblance of a legitimate excuse for non participation on the grounds that she has been slighted by being placed in the same category as Poland and Czechoslovakia as is indeed suggested in . Johnston's letter.

4. China is a much more difficult problem and obviously we cannot go through the same forms of consultation as we might propose in the case of the Soviet Government. If the United

26 MAR 1951

/ States Government

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Tokyo telegram No. 324 to Foreign Office.

- 2 -

States Government accepts our formula for circumventing the problem of the two Chinas (your telegram No. 984 Saving to Washington) and with it the method for selecting the principal participants set out in paragraph 3 of Johnston's letter we should, it is true, achieve one objective viz. that of avoiding injection of Chinese poison into the Treaty question, but we shall not by this means guard ourselves against possible future Japanese grievances about the consequences to them of non signature of the Treaty by China and communist exploitation of this. If the United States Government do not accept our formula for exclusion of both Chinas, they will however in view of their recognition of the Nationalist Government surely feel bound to explain the reasons to that Government and very likely also consult them and keep them informed generally. Should not His Majesty's Government and possibly also Indian and Pakistani Governments do so also vis-a-vis the Chinese People's Central Government whom they recognise. I know that such a suggestion presents certain difficulties, one of which of course is that anything we said in Peking and particularly any documents given to the Central People's Government might well be used for propaganda purposes. (Compare e.g., treatment of Mr. Dulles' original seven points). Nevertheless I submit with great respect that this suggestion should be carefully considered as a means of protecting ourselves against the dangers I have mentioned in paragraph 2 above.

5. As regards Japanese participation I should see no objection and possibly some advantage in the Japanese Government being shown for their own information but not for comment, the draft Treaty at a fairly early stage in the same way as Mr. Dulles gave them his provisional memorandum at the end of his visit to Tokyo. Indeed, if the Treaty were to be accompanied by any protocols or annexes signed by one or more, but not all signatories (e.g., between Japan and United Kingdom on Swiss gold) communication to Japanese Government of main documents to which these protocols and annexes would be attached would be necessary for their negotiations. I might add that in the case of Mr. Dulles' provisional memorandum his confidence has been scrupulously respected and so far as I know the existence of the document has not leaked to the public.

/ Foreign Office

SECRET

Future telegram No. 874 to Foreign Office.

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SECRET.

Tokyo telegram No. 324 to Foreign Office.

- 3 -

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SECRET.

Tokyo telegram No. 834 to Foreign Office.

- 3 -

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